APPENDIX A

Commercial Particulars and Payment Schedule

Subcontract	Reinforced concrete works - Hiform (M) Sdn Bhd
Estimated Subcontract Sum	RM12,000,000
Pricing basis	Remeasurement of actual quantities at fixed Bill of Quantities rates
Interim valuation date	25th day of each month
Certifying party	PBT's Project Quantity Surveyor
Certification period	14 calendar days after receipt of a properly supported claim
Payment period	45 calendar days from the interim certificate date
Upstream condition	None - payment is not conditional upon upstream receipt
Advance payment	5% of estimated Subcontract Sum; recovered equally from first five interim certificates
Retention	5% of each certified interim amount, capped at 5% of estimated Subcontract Sum
Retention release	50% at practical completion; balance at end of 12-month Defects Liability Period subject to defects made good
Final account	Hiform submits within 60 days after practical completion; PBT assesses within 60 days of complete submission

A1. Interim Payment Claims

Hiform may submit one progress claim on the 25th day of each month. Each claim shall identify measured quantities, supporting site records and approved variation references where applicable.

A2. Certification

PBT's Project Quantity Surveyor shall issue an interim certificate within 14 calendar days after receipt of a properly supported claim. Where any part of a claim is adjusted or rejected, the certificate shall identify the disputed item and the basis of the adjustment.

A3. Payment

Certified sums are due within 45 calendar days from the certificate date. PBT's obligation to pay Hiform is a direct obligation and is not conditional on receipt of payment from any upstream party.

A4. Advance Payment

The advance payment is 5% of the estimated Subcontract Sum, equivalent to RM600,000. It is recoverable by equal deductions from the first five interim certificates.

A5. Retention

Retention is deducted at 5% of each certified interim amount until the aggregate retention reaches 5% of the estimated Subcontract Sum. Half is released at practical completion of Hiform's works and the balance at expiry of the Defects Liability Period, subject to notified defects being made good.

A6. Set-Off and Deductions

PBT may deduct sums expressly recoverable under the subcontract, including substantiated third-party completion costs following Hiform's failure to comply with a written instruction. Before a deduction is made, PBT shall give written notice stating the basis and amount of the proposed deduction.

A7. Final Account

Hiform shall submit its final account within 60 days after practical completion. PBT shall assess the final account within 60 days after receiving a complete submission.